

Senate File 551

S-3142

1 Amend Senate File 551 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <Section 1. Section 157.2, subsection 1, Code 2025, is
5 amended by adding the following new paragraph:

6 NEW PARAGRAPH. *h.* Persons providing services pursuant to an
7 establishment training program authorized pursuant to section
8 157.12D.

9 Sec. 2. Section 157.2, subsection 3, Code 2025, is amended
10 to read as follows:

11 3. With the exception of hair removal, manicuring, and nail
12 technology services, persons licensed under this chapter or
13 participating in an establishment training program authorized
14 pursuant to section 157.12D shall not administer any procedure
15 in which human tissue is cut, shaped, vaporized, or otherwise
16 structurally altered.

17 Sec. 3. Section 157.3, Code 2025, is amended by adding the
18 following new subsection:

19 NEW SUBSECTION. 3. Notwithstanding subsection 1, a person
20 who completes the application form prescribed by the board
21 and submits satisfactory proof, signed by the supervising
22 licensees, of having completed two thousand hours of supervised
23 practice under an establishment training program pursuant to
24 section 157.12D shall be allowed to take the examination for a
25 license to practice the appropriate practice of the barbering
26 and cosmetology arts and sciences.

27 Sec. 4. Section 157.8A, Code 2025, is amended to read as
28 follows:

29 **157.8A Use of schools of barbering and cosmetology arts and**
30 **sciences.**

31 1. A school of barbering and cosmetology arts and sciences
32 may be used for purposes other than student instruction so long
33 as the other activities do not disrupt classes.

34 2. An instructor employed by a school of barbering and
35 cosmetology arts and sciences may perform barbering and

1 cosmetology arts and sciences services at the school of
2 barbering and cosmetology arts and sciences for compensation
3 while not instructing students.

4 3. The board shall adopt rules for the implementation of
5 this section.

6 Sec. 5. Section 157.10, subsection 1, Code 2025, is amended
7 by adding the following new paragraph:

8 NEW PARAGRAPH. *d.* The board may approve a course of study
9 allowing a student to simultaneously study for licenses to
10 practice both esthetics and nail technology. A student who
11 partially completes a combined course of study for licensure
12 for the practice of esthetics and nail technology is not
13 eligible for licensure for the practice of esthetics or nail
14 technology unless the student has completed the licensure
15 requirements for the practice of esthetics or nail technology.
16 The board shall adopt rules pursuant to chapter 17A for the
17 implementation of this paragraph.

18 Sec. 6. Section 157.10, Code 2025, is amended by adding the
19 following new subsection:

20 NEW SUBSECTION. 4. The board shall not approve a program of
21 study that includes a course of study with substantially lower
22 requirements than the requirements imposed by this chapter or
23 the board for a similar license.

24 Sec. 7. Section 157.11, subsection 3, Code 2025, is amended
25 to read as follows:

26 3. A licensed school of barbering and cosmetology arts and
27 sciences at which students or licensees practice barbering and
28 cosmetology arts and sciences is exempt from licensing as an
29 establishment.

30 Sec. 8. NEW SECTION. 157.12D Establishment training
31 program.

32 1. An establishment training program is created. The
33 board shall create an establishment training program and allow
34 establishments to register to participate in the program. An
35 establishment licensed pursuant to section 157.11, including

1 an establishment operating in a residence pursuant to section
2 157.6 may participate in the program by registering with the
3 board.

4 2. An establishment that registers with the board may employ
5 persons, without regard to the person's licensure status, to
6 provide the services of shampooing, cutting, coloring, and
7 styling hair under the supervision of a licensee who regularly
8 provides the services. A person providing services without
9 a license must first complete two hours of education related
10 to barbering and cosmetology laws in this state and rules and
11 sanitation, as determined by the board by rule, before offering
12 services permitted under the program. The establishment owner
13 is responsible for ensuring the education, training, skills,
14 and competence of persons who provide services in the owner's
15 establishment.

16 3. An establishment participating in the establishment
17 training program shall comply with all facility and minimum
18 equipment requirements, safety and infection control
19 provisions, inspection requirements, management requirements,
20 and establishment licensing renewal requirements. The
21 department shall inspect an establishment participating in the
22 program as the department deems necessary to ensure compliance
23 with these requirements.

24 4. The establishment shall disclose in writing prior to
25 the consumer's receipt of services from an unlicensed provider
26 that the establishment is participating in the program and
27 that the provider is not licensed. The disclosure shall be
28 clearly legible and state: "This licensed establishment is
29 registered to participate in an establishment training program.
30 This establishment employs unlicensed providers who work under
31 the supervision of licensed providers. The services you are
32 receiving are from an unlicensed provider participating in this
33 program."

34 5. In addition to any other remedy provided by law, in
35 an action based on an injury alleged to have occurred in an

1 establishment participating in the establishment training
2 program, a prevailing party may recover reasonable attorney's
3 fees and receive other equitable relief as determined by the
4 court.

5 6. In addition to any other disciplinary powers established
6 pursuant to this chapter, the board may, when it has probable
7 cause to believe that human health is endangered, order an
8 establishment participating in the program to immediately cease
9 participation in the program. The board shall conduct formal
10 proceedings pursuant to this chapter to determine whether the
11 problem has been corrected, whether to suspend, revoke, or
12 reinstate the establishment's participation in the program, and
13 whether to suspend, revoke, or reinstate the establishment's
14 license.

15 7. For the purposes of this section, "*supervision*" means
16 within the physical presence of a licensee and the licensee is
17 available to assist in providing services.

18 Sec. 9. Section 157.13, subsection 1, Code 2025, is amended
19 by adding the following new paragraph:

20 NEW PARAGRAPH. *d.* When the practice is performed by a
21 person without a license under the supervision of a licensee in
22 an establishment registered with the board pursuant to section
23 157.12D.

24 Sec. 10. Section 157.13, subsection 4, unnumbered paragraph
25 1, Code 2025, is amended to read as follows:

26 If the board has reasonable grounds to believe that a person
27 or establishment which is not licensed under this chapter and
28 that is not participating in an establishment training program
29 pursuant to section 157.12D has engaged, or is about to engage,
30 in an act or practice which requires licensure under this
31 chapter, or otherwise violates a provision of this chapter, the
32 board may issue an order to require the unlicensed person or
33 establishment to comply with the provisions of this chapter,
34 and may impose a civil penalty not to exceed one thousand
35 dollars for each violation of this chapter by an unlicensed

1 person or establishment. Each day of a continued violation
2 after an order or citation by the board constitutes a separate
3 offense, with the maximum penalty not to exceed ten thousand
4 dollars.>

5 2. Title page, by striking lines 2 through 4 and inserting
6 <arts and sciences, including establishment training programs,
7 schools of barbering and cosmetology arts and sciences, and
8 course of study.>

JEFF REICHMAN